

M/s Shri Satguru Metalloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 August 2011 · Writ - C No. 47736 of 2011 · **Writ disposed of; consumer relegated to statutory appeal under section 127.**

HEADNOTE

A writ challenging a licensee's final assessment is not entertained on merits where section 127 of the Electricity Act, 2003 provides a statutory appeal. The petition was disposed of leaving the consumer to that appeal; documents required for the appeal were to be supplied within one week, and no opinion was expressed on a disputed claim of reconnection on a lesser deposit.

FACTUAL SUMMARY

M/s Shri Satguru Metalloys challenged UPPCL's final assessment of 4.8.2011 by certiorari. The licensee raised section 127 of the Electricity Act, 2003 as a statutory appeal. The consumer argued its case differed from others checked the same day; documents sought after a 3.9.2010 liberty in W.P. No. 52057 of 2010 were not supplied, prejudicing its reply; and proceedings ought to have been dropped under para 8.1.(G) of the U.P. Electricity Supply Code, 2005. It also alleged reconnection on a lesser deposit.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ not entertained against final assessment when s.127 appeal available

HOLDING

Where a consumer challenges a detailed final assessment by writ, the High Court will not enter the facts or merits if a statutory appeal under section 127 of the Electricity Act, 2003 is available. The petitioner was left to that appeal, with liberty to seek any document or report needed to file it (to be given within one week) and to request the competent authority for reconnection treatment similar to any concession already extended; the Court expressed no opinion on that disputed fact. ¶ 1-2

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal A writ challenging a licensee's final assessment is not entertained on merits where section 127 of the Electricity Act, 2003 provides a statutory appeal.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CHECKING, POLICE AND METER REPORTS SHOWED NOTHING ADVERSE SO AS TO INVALIDATE THE FINAL ASSESSMENT

Court declined to enter into facts because of the s.127 appeal. ¶ 1-2

NOT DECIDED — WHETHER ASSESSMENT PROCEEDINGS WERE WITHOUT JURISDICTION FOR FAILURE TO DROP THEM UNDER PARA 8.1.(G) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised by the petitioner; not decided. Clause cited as 8.1.(G) as in the order. ¶ 1-2

NOT DECIDED — WHETHER RECONNECTION HAD BEEN PERMITTED ON DEPOSIT OF A LESSER AMOUNT

Fact disputed; Court issued no direction and expressed no opinion. ¶ 1-2

